

HOUSE No. 4617

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 20, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1140) of Daniel M. Donahue relative to diagnostic evaluation by an advanced practice registered nurse, reports recommending that the accompanying bill (House, No. 4617) ought to pass.

For the committee,

JAMES M. MURPHY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to remove barriers to patient care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 175 of the General Laws is hereby amended by inserting before
2 section 47CCC the following section:-

3 Section 47AAA. When any provision in this chapter requires a diagnostic evaluation,
4 medical necessity determination, certification, written order, prescription, or treatment
5 recommendation by an attending, treating or consulting physician as a condition of coverage or
6 reimbursement of health services, that requirement may be fulfilled by an advanced practice
7 registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be
8 construed to expand the scope of practice of advanced practice registered nurses.

9 SECTION 2. Chapter 176A of the General Laws is hereby amended by inserting after
10 section 8DDD the following section:-

11 Section 8EEE. When any provision in this chapter requires a diagnostic evaluation,
12 medical necessity determination, certification, written order, prescription, or treatment
13 recommendation by an attending, treating or consulting physician as a condition of coverage or

reimbursement of health services, that requirement may be fulfilled by an advanced practice registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be construed to expand the scope of practice of advanced practice registered nurses.

SECTION 3. Chapter 176B of the General Laws is hereby amended by inserting after section 4DDD the following section:-

Section 4EEE. When any provision in this chapter requires a diagnostic evaluation, medical necessity determination, certification, written order, prescription, or treatment recommendation by an attending, treating or consulting physician as a condition of coverage or reimbursement of health services, that requirement may be fulfilled by an advanced practice registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be construed to expand the scope of practice of advanced practice registered nurses.

SECTION 4. Chapter 176G of the General Laws is hereby amended by inserting after section 4VV the following section:-

Section 4WW. When any provision in this chapter requires a diagnostic evaluation, medical necessity determination, certification, written order, prescription, or treatment recommendation by an attending, treating or consulting physician as a condition of coverage or reimbursement of health services, that requirement may be fulfilled by an advanced practice registered nurse practicing under section 80B of chapter 112. Nothing in this section shall be construed to expand the scope of practice of advanced practice registered nurses.

SECTION 5. Subsection (a) of section 16 of chapter 176O of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “physician”, in line 1, the following words:- “or advanced practice registered nurse”.

36 SECTION 6. Said subsection (a) of section 16 of chapter 176O of the General Laws, as
37 so appearing, is hereby further amended by striking out, in line 9, the words “treating physician”
38 and inserting in place thereof the following words:- “treating provider”.

39 SECTION 7. Subsection (b) of section 16 of chapter 176O of the General Laws, as
40 appearing in the 2022 Official Edition, is hereby amended by inserting after the words “treating
41 physician”, in line 11, the following words:- “, treating advanced practice registered nurse”.